

10. Evidence before Committee or any other Authority.—(1) Save as provided in sub-rule (3) no railway servant shall, except with the previous sanction of the Government, give evidence in connection with, any enquiry conducted by any person, committee or authority.

2. Where any sanction has been accorded under sub-rule (1), no railway servant shall in the course of giving such evidence criticise the policy or any action of the Central Government or of a State Government.

3. Nothing in this rule shall apply to—

- (a) evidence given at any enquiry before an authority appointed by the government, Parliament or a State Legislature; or
- (b) evidence given in any judicial inquiry; or

(c) evidence given at any departmental inquiry ordered by authorities subordinate to the Government.

11. Communication of Official Information. - Every Railway servant shall, in performance of his duties in good faith, communicate information to a person in accordance with the Right to Information Act, 2005 (22 of 2005) and the rules made thereunder:

Provided that no Railway servant shall, except in accordance with any general or special order of the Government or in performance in good faith of the duties assigned to him, communicate, directly or indirectly, any official document or any part thereof or classified information to any Railway servant or any other person to whom he is not authorised to communicate such document or classified information."

(Authority: Railway Board's letter No. E(D&A) 2005/GS1 dated 21.02.06)—ACS NO.97

12.Subscription.—No railway servant, shall, except with the previous sanction of the Government or of the competent authority, ask for or accept contributions to or otherwise associate himself with the raising, of, any funds or other collections in cash or in kind in pursuance of any object whatsoever.

Railway Ministry's decision.—(1) The association of Railway servants with the selling of tickets for charity show or for any purpose whatsoever attract the provisions of this rule and prior permission of the Government would be necessary for this purpose. Sale of Tickets by Railway employees to the members of the general public is likely to invite public criticism and should not be permitted.

(E(D&A) 68 GS 1-7 dt 19/22-8-1968.)

Railway Ministry's decision. —(2) The powers under this Rule may be exercised by the General Managers in respect of all staff working under them for collection of subscription for celebrating religious festivals only. Permission should be given on the specific conditions that only voluntary subscription are collected and no pressure of any kind is brought on them on the collection of these funds.

(E(D&A) 68 GS1-7 dt.30-1-1969.)

13.Gifts. —(1) Save as provided in these Rules, no Railway servant shall accept, or permit any member of his family or (any other person acting on his behalf) to accept , any gift.

Explanation. —The expression "gift' shall include free transport, boarding, lodging or other service or any other pecuniary advantage

provided by any person other than a near relative or personal friend having no official dealings with the govt. servant.

Note. —(1) A casual meal, lift or other social hospitality shall not be deemed to be a gift.

Note. —(2) A Railway servant shall avoid accepting lavish hospitality or frequent hospitality from any individual, industrial or commercial firms, organizations, etc. having official dealings with him.

(2) On occasions such as weddings, anniversaries, funerals or religious functions, when the making of gift is in conformity with the prevailing religious and social practice, a Railway Servant may accept gifts from his near relatives or from his personal friends having no official dealings with him, but shall make a report to the Government, if the value of such gift exceeds –

(i) rupees twenty five thousand in the case of a Railway servant holding any Group 'A' post;

(ii) rupees fifteen thousand in the case of a Railway servant holding any Group 'B' post;

(iii) rupees seven thousand five hundred in the case of a Railway servant holding any Group 'C' post.

(Authority - Railway Board's letter No. E(D&A) 2014 GS1-3 dated 12.01.2015)...acs no.126

(3) In any other case, a Railway servant shall not accept any gift without the sanction of the Government if the value exceeds –

(i) rupees one thousand and five hundred in the case of Railway servants holding any Group 'A' or Group 'B' post; and

(ii) rupees five hundred in the case of Railway Servants holding any Group 'C' or Group 'D' post.

(Authority: Railway Board's letter No. E(D&A)2004/GS1-2 dated 15.03.2004)—**ACS NO.91**

(4) Notwithstanding anything contained in sub-rules (2) and (3), a Railway Servant, being a member of the Indian delegation or otherwise, may receive and retain gifts from foreign dignitaries if the market value of gifts received on one occasion does not exceed rupees one thousand. In all other cases, the acceptance and retention of such gifts shall be regulated by the instructions issued by the Government in this regard from time to time.

(5) A Railway Servant shall not accept any gifts from any foreign firm which is either contracting with the Government of India or is one with which the Railway servant had, has or is likely to have official dealings. Acceptance of gifts by a Railway servant from any other firm shall be subject to the provisions of sub-rule (3).

(Authority: Railway Board's letter No. E(D&A) 96 GS 1-8 dated 17.01.1997.)

Railway Ministry's decision. – 1 The acceptance of tips is misconduct and may be treated as a good and sufficient reason for taking disciplinary action.

(E (D&A) 61 GSI-15 dt. 19-9-61.)

Railway Ministry's decision. —2 Gifts received or given by a railway servant in the form of cash attract the provisions of the Rule even though it is a transaction between father and son.

(E(D&A) 64 GS1-5 dt. 25-2-65.)

Railway Ministry's decision. –3 Receipt of presents by Railway servants at the time of their marriage in form of cash, ornaments, cloths or other articles, otherwise than as consideration for marriage, from relative and personal friends and others will be regulated by the above Rule. Purchase of items of movable property for giving presents at the time of marriage or on other occasions will be regulated by Rule 18 (3), like any other transaction of movable property.

(E (D&A) 65 GS112 dt. 23-4-66.)

(E (D&A) 65 GS1-20 dt. 7-7-70.)

Railway Ministry's decision. – 4 Making or acceptance of gifts amongst "Near Relatives" which include father, mother, son, daughter etc. requires the approval of the competent authority in terms of sub rule (5) above.

(E (D&A) 69 GSI-20 dt. 5-1-70.)

Railway Ministry's decision – 5 The following are the instructions in regard to receipt, retention and disposal of gifts of high valuation received by Railway servants from foreign dignitaries and foreign firms.

1. The presents of symbolic nature like a ceremonial sword, ceremonial robe etc. may be retained by the recipient.
2. The gifts of the value not exceeding Rs. 1000/- may also be retained.
3. Railway servant shall report the receipt of gifts, the value of which exceeds Rs. 1000 to the department indicating the value. The Department will refer the matter to Toshakhana for valuation of the gifts. If it is found that the value is Rs. 1000/- or less the gift will be returned to the recipient. If however, the value exceeds Rs. 1000/- it will be retained by in Toshakhana and the recipient will, have the option to purchase it from Toshakhana by paying the difference between the value as estimated and Rs. 1000/-.
4. Acceptance of gifts from foreign firms with whom the Railway servant has had or has or is likely to have official dealing either, directly or indirectly by virtue of his official position as well as acceptance of gifts from firms which are contracting firms with the government are prohibited.

(E (D & A) 76 GSI-31 dt. 22-12-76.)

13-A. Dowry.-- No Railway servant shall ---

- (i) give or take or abet the giving or taking of dowry; or
- (ii) demand directly or indirectly, from the parents or guardian of a bride or bridegroom, as the case may be, any dowry.

Explanations:- For the purpose of this rule 'dowry' has the same meaning as in the Dowry Prohibition Act, 1961.

In this Act, "dowry" means any property or valuable security given or agreed to be given either directly or indirectly—

- (a) by one party to a marriage to the other party to marriage; or
 - (b) by the parents of either party to a marriage or by any other person, to either party to the marriage or to any other person;
- at or before or after the marriage as consideration for the marriage of the said parties, but does not include dower or mahr in the case of persons to whom the Muslim Personal Law (Shariat) applies.

Explanation I. ---For the removal of doubts, it is hereby declared that any presents made at the time of a marriage to either party to the marriage in the form of cash, ornaments, clothes or other articles shall not be deemed to be dowry within the meaning of this section, unless they are made as consideration for the marriage of the said parties.

Explanation II. ---The expression "Valuable security" has the same meaning as in Section 30 of the Indian Penal Code.

14. Public demonstrations in honour of Railway servants. —No railway servant shall except with the previous sanction of the Government receive any complimentary or valedictory address or accept any testimonial or attend any meetings of entertainment held in his honour, or in the honour of any other Government servant :

Provided that nothing in this rule shall apply to ---

- (i) a farewell entertainment of a substantially private and informal character held in honour of a railway servant or any other Government servant on the occasion of his retirement or transfer or any person who has recently quit the service of any Government; or
- (ii) the acceptance of simple and inexpensive entertainments arranged by public bodies or institutions.

Note. —Exercise of pressure or influence of any sort on any railway servant to induce him to subscribe towards any farewell entertainment even if it is of a substantially private or informal character and the collection of subscriptions from Group 'C' and Group 'D' employees under any circumstances for the entertainment of any railway or other Government servant not belonging to Group 'C' and Group 'D' is forbidden.

Railway Ministry's decision. --- 1. Officers in Group 'A' service upto the J.A. Grade should furnish promptly particulars of all invitations received by them from foreign missions in India and accept them only after obtaining the necessary clearance from the Railway Board. Officers in Group 'B' service and below are debarred from accepting such invitations except in very rare cases. All officers, so permitted, should submit a list of any important and interesting talks or other discussions held with the representative of the foreign mission on matters of interest to the Railway Board.

(E (D&A) 57 GSI-3 dt. 8-1-57.)

Railway Ministry's decision. ---2. Railway servants should refrain from associating themselves with functions inappropriate and inconsistent with the rule of detached impartiality such as to declare buildings etc. open or to lay the foundation stones of new buildings or to allow roads, bridges, parks or public institutions such as hospitals, schools or colleges to be named after them. When occasions which have a cultural and sociological significance arise, especially in remote areas, prior permission of their superior officer should be obtained.

(E (D&A) 60 GSI-8 dt. 27-3-61.)